

FINAL CLOSURE REPORT

Consolidated Forensic Record of Systemic Administrative Malfeasance,
Registry Irregularity & Judicial Oversight Failure

Court	Case Number	Matter
Labour Court	2026-077546	W.W. Matthee v Afrocentric Health (RF) (PTY) LTD & Another (BCEA s.77A – Default Judgment)
Labour Court	2026-083299	W.W. Matthee v Afrocentric Health (RF) (PTY) LTD & Another (LRA – Constructive Dismissal / PDA)
Western Cape High Court	2026-066952	Urgent Application – 25 March 2026
Western Cape High Court	2026-086906	AfroCentric Investment Corporation Limited v W.W. Matthee – 16 April 2026

Issued: 22 June 2026

Issued By:

Wilbur William Matthee

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1. EXECUTIVE SUMMARY

This report constitutes the final administrative closure notice regarding all matters between the Applicant and the Office of the Chief Justice. The record is complete. The evidence is immutable. This is the final interaction between the Applicant and the OCJ on these matters.

The facts are undisputed and proven by primary-source documents:

Finding	Evidence
Registrar Soundy personally uploaded the Applicant's Statement of Claim and BCEA application due to portal failures	Email: TSoundy@judiciary.org.za, 05 May 2026, 12:14
Registrar Ismail first acknowledged the matter was on the backlog (12 May 2026), then weeks later invented a procedural defect (10 June 2026)	Emails: FIsmail@judiciary.org.za, 12 May & 10 June 2026
Director David admitted the court's system failures cause erroneous notifications	Email: RDavid@judiciary.org.za, 22 June 2026, 13:53
The Applicant received a "ghost notification" for a non-existent hearing	Applicant's sworn affidavit, 18 June 2026
Acting Chief Registrar Nicola Hanekom has remained silent on the Applicant's urgent audio request (03 June 2026) – a request vital to prevent misrepresentation to the National Speaker of Parliament	Email: info@ethichawks.co.za to NHanekom, 03 June 2026; NO RESPONSE – read receipt
The Applicant filed a Unilateral Pre-Trial Minute in Case No: 2026-083299, which remains unacknowledged	Filing record; NO ACKNOWLEDGMENT – read receipt
The Judge Presidents of both the High Court and Labour Court have provided NO RESPONSE to the formal escalation (EH/JO/2026/003) transmitted on 09 June 2026	Email: RDavid@judiciary.org.za, 09 June 2026, 21:40; NO RESPONSE FROM JUDGE PRESIDENTS

The legal position is clear and unassailable:

- Labour Court Rule 16(1) mandates the Registrar to enrol unopposed default judgments. The Registrar's duty is non-discretionary.
- Administrative errors originating from the Registrar's office cannot prejudice the litigant (*Munozohamba v Onelogix Linehaul*, LC 2021).
- The Registrar's assistance in uploading documents shifts the onus entirely to the court.
- The High Court's silence on the audio request constitutes a functional denial of access to justice and a breach of Section 34 of the Constitution.
- The Judge Presidents' silence on the formal escalation constitutes a failure of judicial oversight and a dereliction of their constitutional duties.

This report closes all administrative engagement. The matter is now referred to:

- Parliamentary Oversight Committees – for oversight failure and misrepresentation to the National Speaker.
- The Information Regulator – for POPIA breaches.
- The Judicial Service Commission – for administrative malfeasance and judicial conduct.
- The South African Human Rights Commission – for constitutional violations.
- The Legal Practice Council – for opposing counsel's conduct (*Deneys Reitz Inc.*).

△ FINAL POSITION

The record is complete. The evidence is immutable. The attrition ends here.

2. THE UNDISPUTED RECORD OF EVENTS – COMPLETE CHRONOLOGY

The following timeline is drawn entirely from primary-source documents. Every entry is verifiable by SHA-256 cryptographic hash.

Date	Event	Evidence	Forensic Implication
05 Mar 2026	Applicant files urgent application (s.77A BCEA) – unlawful salary deduction of R14,811.77	Parliamentary Memorandum, p.1	Registrar notified of destitution; matter marked urgent
06 Mar 2026	Formal notice of intent to escalate to Judge President issued; ignored	Parliamentary Memorandum, p.1	Deliberate institutional silence
25 Mar 2026	High Court hearing before Judge Anderson; Applicant in medical duress; unauthorized representative; Scale C costs order	Parliamentary Memorandum, p.1–2	"Ambulance at the Courthouse" – Court witnessed psychiatric crisis
26 Mar 2026	Applicant requests audio recordings from Acting Chief Registrar Hanekom for rescission application	Correspondence record, p.2	NO RESPONSE – 40+ days
02 Apr 2026	Case No: 2026-077546 (BCEA) finally issued – after 28-day delay	Filing record, p.1	Case number withheld during destitution emergency
08 Apr 2026	Minister Kubayi releases PDA Amendment Bill; acknowledges whistleblowers face "weak protections"	Legislative record	Legislative theatre while Applicant faces retaliation
08 Apr 2026	Applicant's Statement of Claim rejected by Labour Court portal (CRM: 0002589)	Portal error record	Portal failure – not Applicant's error
09 Apr 2026 (09:54)	Registrar Ismail confirms: "I have been informed that your matter was approved and a case number was issued"	Email: FIsmail@judiciary.org.za	Case number confirmed but withheld
09 Apr 2026 (09:58)	Applicant emails signed Statement of Claim to Registrar to meet statutory deadline	Email record	Valid filing under ECTA Section 13
10 Apr 2026 (08:29)	Registrar misrepresents filing to Director David – claims "assistance on 02 April"	Email record	Misrepresentation to executive leadership
10 Apr 2026 (09:32)	POPIA BREACH: Registrar Soundy transmits Armstrong v City of Cape Town documents to Applicant as "proof" of filing	Parliamentary Memorandum, p.3	Unauthorised disclosure of third-party confidential records
10 Apr 2026 (17:01)	Applicant told Statement of Claim is "unsigned" – screenshot of signature provided; signature valid under ECTA Section 13	Email record	Technical deflection – signature was valid
10 Apr 2026 (17:07)	Applicant accused of "threatening court personnel" – no threat made	Email record	Character attack – no evidence of threat transmitted by Director David
14 Apr 2026	Applicant requests Registrar Soundy's assistance with technical filing issues for Case Nos: 2026-077546 & 2026-083299	Email: info@ethichawks.co.za to TSoundy	Portal failures continue
16 Apr 2026	High Court hearing before Acting Justice Mphego; Applicant's Answering Affidavit transmitted at 12:31; Applicant requests audio recording	Email: info@ethichawks.co.za to NHanekom, 03 Jun 2026	Audio vital to prevent misrepresentation to Parliament

30 Apr 2026	Applicant files Application for Default Judgment via email due to portal failures	Email to Registrar Soundy with attachments	Matter ripe for adjudication
05 May 2026 (12:14)	Registrar Soundy requests login credentials and uploads documents herself	Email: TSoundy@judiciary.org.za	Onus shifts entirely to Registrar
05 May 2026	Registrar Soundy logs call with technicians regarding portal issues	Email: TSoundy@judiciary.org.za, 14:43	Court acknowledges system failures
12 May 2026	Registrar Ismail: "I have added your matter to the backlog... I will let you know if a date has been allocated"	Email: FIsmail@judiciary.org.za	NO procedural objection raised
03 Jun 2026	Applicant requests urgent audio recording from Acting Chief Registrar Hanekom – vital to prevent misrepresentation to Parliament	Email: info@ethichawks.co.za to NHanekom	NO RESPONSE – read receipt
03 Jun 2026	Applicant's first follow-up on Default Judgment placement	Email: info@ethichawks.co.za to FIsmail	Matter remains unacknowledged – read receipt
09 Jun 2026 (18:04)	Formal Escalation (EH/JO/2026/003) transmitted to Director David for Judge Presidents	Email: info@ethichawks.co.za to RDavid	Judicial oversight invoked
09 Jun 2026 (21:40)	Director David confirms: "your correspondence has been submitted to the respective Judge Presidents as requested"	Email: RDavid@judiciary.org.za	NO RESPONSE FROM JUDGE PRESIDENTS
10 Jun 2026 (09:08)	Registrar Ismail: "Your matter seems to be an application and not a referral... Do you perhaps have an outcome?"	Email: FIsmail@judiciary.org.za	Contradiction of 12 May position – procedural defect invented
10 Jun 2026 (11:24)	Registrar Ismail refers Applicant to Rules 35 & 36 (motion proceedings)	Email: FIsmail@judiciary.org.za	Procedurally incorrect – Rule 16(1) applies
18 Jun 2026 (10:55)	Applicant receives "ghost notification" SMS for non-existent hearing	Applicant's sworn affidavit	Data integrity failure; POPIA breach
22 Jun 2026 (13:53)	Director David: "The courts are experiencing challenges with the Court online system... This could account for some of the messages you are receiving"	Email: RDavid@judiciary.org.za	Official admission of system failures
Pending	Acting Chief Registrar Hanekom: NO RESPONSE to audio request	Silence since 03 Jun 2026	Complicity in misrepresentation to Parliament
Pending	Unilateral Pre-Trial Minute: NO ACKNOWLEDGMENT	Case No: 2026-083299 – read receipt	Systemic administrative obstruction
Pending	Judge Presidents: NO RESPONSE to formal escalation	Silence since 09 Jun 2026	Failure of judicial oversight

3. THE REGISTRAR'S CONTRADICTION – EVIDENCE OF MALFEASANCE

The Contradiction is Fatal to Her Defence

Registrar Ismail's First Position (12 May 2026)	Registrar Ismail's Second Position (10 June 2026)
"I have added your matter to the backlog"	"Your matter seems to be an application and not a referral"
"I will let you know if a date has been allocated"	"Do you perhaps have an outcome?"
No procedural objection raised	Procedural defect invented weeks later

Forensic Implication – The Questions That Cannot Be Answered

- If the matter was procedurally defective, why did she place it on the backlog for allocation on 12 May?
- If a referral certificate was required, why did she not raise this on 12 May when she first reviewed the file?
- If the matter was not properly before the Court, why did she not reject it immediately?

The Only Logical Conclusion

The procedural objection was manufactured after the fact to justify a delay that had already occurred. This is prima facie evidence of administrative malfeasance – a deliberate obstruction designed to delay a self-represented litigant's access to justice.

4. REGISTRAR SOUNDY'S UPLOAD – THE ONUS SHIFTS

The Undisputed Fact

On 5 May 2026 at 12:14, Registrar Tsakani Soundy wrote:

"Please send your login details and the documents, I will upload."

The Applicant provided his login credentials. Registrar Soundy personally uploaded both the Statement of Claim and the BCEA application.

Legal Consequence

- The Registrar assumed responsibility for ensuring the documents were properly filed.
- Any filing deficiency or procedural confusion now rests squarely with the Registrar's office – not with the litigant.
- The Court cannot weaponise its own administrative intervention against the Applicant.

Case Law Support

"As a result of an administrative filing error at the office of the Registrar the opposing papers were not brought to my attention." – Munozohamba v Onelogix Linehaul (Labour Court, 2021)

"loadshedding and regular intermittent email disruptions of the official email service of the Office of the Chief Justice caused disruptions in the filing and sending of documents to the Registrar" – Ibid.

The Inescapable Conclusion

The Registrar's personal intervention and subsequent failure to process the matter constitutes a breach of trust and a dereliction of duty. The onus is on the Court, not the litigant.

5. THE "GHOST NOTIFICATION" – OFFICIAL ADMISSION

The Undisputed Fact

On 18 June 2026 at 10:55, the Applicant received an SMS notification regarding a hearing date. A cross-verification audit of the OCJ Portal and CaseLines confirms that no such notification or hearing schedule exists within the official record.

Director David's Admission

On 22 June 2026 at 13:53, Director Ruanne David wrote:

"the courts are experiencing challenges with the Court online system and our National Office are working on it. This could account for some of the messages you are receiving on your phone and e-mail."

Forensic Implication

- Official admission that the Court's electronic notification system is generating unauthorised and procedurally invalid communications.
- This constitutes a "ghost notification" that creates operational uncertainty.
- This is a breach of administrative due process and a data integrity failure under POPIA.
- This is a breach of Section 34 of the Constitution – the right of access to courts.

6. ACTING CHIEF REGISTRAR HANEKOM'S SILENCE – COMPLICITY IN MISREPRESENTATION TO PARLIAMENT

The Undisputed Fact

On 3 June 2026 at 12:47, the Applicant submitted an urgent request to Acting Chief Registrar Nicola Hanekom for the official digital audio recording of the urgent motion court proceedings held before Acting Justice Mphogo in Court 5 on 16 April 2026 (High Court Case No: 2026-086906).

⚠ 19 DAYS – NO RESPONSE

As of the date of this report, Acting Chief Registrar Hanekom has not responded to the Applicant's urgent audio request.

The Reason for the Request – Preventing Misrepresentation to Parliament

The Applicant's legal representatives, Deneys Reitz Inc., made specific factual assertions regarding the mechanics of that hearing in correspondence addressed to:

- The Honourable Speaker of the National Assembly – titled "AFR1282 Letter to Parliament 03.06.2026.PDF"
- The Applicant directly – titled "AFR1282 Letter to Matthee 03.06.2026.PDF"

The firm asserts that:

- At approximately 12:31 on 16 April 2026, the Applicant's signed and commissioned Answering Affidavit was transmitted to the court.
- Acting Justice Mphogo formally adjourned the court proceedings specifically to read and consider the Applicant's Answering Affidavit prior to granting the interim rule nisi order.

Forensic Implication

- The audio recording is the sole objective mechanism available to confirm the exact timeline, judicial commentary, and statements made by the Applicant's counsel on that day.
- Hanekom's silence is a functional denial of the Applicant's right to access evidence vital to his defence and to prevent misrepresentation to external constitutional oversight bodies.
- This silence constitutes complicity in any misrepresentation that may occur to Parliament.
- This is a breach of Section 34 of the Constitution – the right of access to courts and to a fair hearing.

7. THE HIGH COURT AUDIO REQUEST – MISREPRESENTATION TO THE NATIONAL SPEAKER

The Constitutional Imperative

The Applicant's request for the audio recording is not a mere procedural formality. It is a constitutional imperative to:

- Protect the absolute integrity of the judicial record.
- Prevent any misrepresentation to external constitutional oversight bodies – specifically, the National Speaker of Parliament and the Portfolio Committee on Justice.
- Determine whether a material non-disclosure or procedural irregularity occurred.
- Verify the factual assertions made by Deneys Reitz Inc. to Parliament.

The Consequences of Silence

Acting Chief Registrar Hanekom's silence:

- Facilitates potential misrepresentation to Parliament.
- Denies the Applicant the opportunity to correct the record.
- Undermines the constitutional oversight function of Parliament.
- Constitutes a breach of the Applicant's Section 34 rights.

The Inescapable Conclusion

Hanekom's silence is not administrative delay – it is complicity in the suppression of evidence vital to parliamentary oversight. The National Speaker of Parliament must be informed of this suppression.

8. THE UNILATERAL PRE-TRIAL MINUTE – FILING & REQUEST

The Undisputed Fact

The Applicant has filed a Unilateral Pre-Trial Minute in Labour Court Case No: 2026-083299 (W.W. Matthee v Afrocentric Health (RF) (PTY) LTD & Another).

The filing requests that the matter be placed before a Judge for:

- Case management directives.
- Allocation of a hearing date.
- Determination of the merits of the Applicant's claim.

The Current Status

⚠ UNACKNOWLEDGED FILING

As of the date of this report, the Unilateral Pre-Trial Minute has not been acknowledged by the Registrar's office (read receipt confirmed).

Forensic Implication

- The Respondent has failed to file any response.
- The matter is ripe for judicial intervention.
- The Registrar's failure to acknowledge the filing is further evidence of systemic administrative obstruction.
- This is a breach of Section 34 of the Constitution.

9. THE FORMAL ESCALATION TO JUDGE PRESIDENTS (09 JUNE 2026) – JUDICIAL OVERSIGHT FAILURE

On 09 June 2026, the Applicant transmitted a Formal Escalation (EH/JO/2026/003) to:

- The Honourable Judge President, Labour Court of South Africa (Cape Town)
- The Honourable Judge President, High Court of South Africa (Western Cape Division)

The Escalation Documented

- Systemic Administrative Obstruction: The Registrars' complete failure to execute statutory duties.
- Registry Malfeasance: Misrepresentation of official records to Director David.
- POPIA Breach: Unauthorised transmission of third-party documents.
- Judicial Conduct: The "Ambulance at the Courthouse" principle and the 25 March 2026 hearing.

Director David's Confirmation

On 09 June 2026 at 21:40, Director Ruanne David confirmed:

"Kindly note that your correspondence has been submitted to the respective Judge Presidents as requested."

Forensic Implication

The Judge Presidents were placed on formal notice on 09 June 2026. As of the date of this report – 13 days later – NO RESPONSE HAS BEEN RECEIVED.

⚠ JUDICIAL OVERSIGHT FAILURE

The Judge Presidents' silence constitutes a failure of judicial oversight and a dereliction of constitutional duties by the heads of these jurisdictions.

10. LEGAL FRAMEWORK – THE REGISTRAR'S MANDATORY DUTY

Labour Court Rule 16(1)

"If no response has been delivered within the prescribed time period... the registrar must, on notice to the applicant(s), enrol a matter for judgment by default."

Judicial Interpretation

"In terms of the Rules of the Labour Court it is the Registrar who enrolls matters. The Registrar is enjoined to do so as expeditiously as possible." – Mthembu v Unique Air (Labour Court)

The Registrar's Duty is Non-Discretionary

The Registrar is not authorised to substitute procedural preference for the mandatory wording of the Rules. The insistence on a "referral" for a BCEA section 77A application is procedurally incorrect and constitutes a misrepresentation of the Rules.

11. THE "APPLICATION VS. REFERRAL" FALLACY – PROCEDURAL MISREPRESENTATION

Registrar Ismail's Position (10 June 2026)

"Your matter seems to be an application and not a referral. An application for default judgment is done in the case of a referral (when you have a referral certificate)."

The Correct Legal Position

- The BCEA section 77A claim is a statutory application brought directly to the Labour Court.
- It does not require a CCMA referral certificate.
- The Applicant is entitled to default judgment under Rule 16(1) where no opposition has been filed.

The Registrar's Error

The Registrar is conflating two distinct procedural mechanisms:

Mechanism	Requirement
LRA referrals	Require a CCMA certificate of non-resolution
BCEA statutory applications	Do not require a CCMA certificate

The Applicant's claim is brought under Section 77A of the BCEA, which is a direct application to the Labour Court. The Registrar's insistence on a referral certificate is procedurally incorrect and constitutes maladministration.

12. CONSTITUTIONAL VIOLATIONS – SECTIONS 9, 34, 195

Section 9 – Equality

"Everyone is equal before the law and has the right to equal protection and benefit of the law."

The Applicant, as a self-represented, destitute litigant with a documented disability (PTSD), has been treated differently from represented, financially resourced litigants. No reasonable accommodation has been made for his destitution or his status as an unrepresented person with a documented mental health condition.

Section 34 – Right of Access to Courts

"Everyone has the right to have any dispute that can be resolved by the application of law decided in a fair public hearing before a court or, where appropriate, another independent and impartial tribunal or forum."

The Registrar's obstruction – the manufactured procedural defect, the "ghost notification," the systemic delay, Hanekom's silence on the audio request, the failure to acknowledge the Unilateral Pre-Trial Minute, and the Judge Presidents' silence – constitutes a functional denial of this constitutional right.

Section 195 – Public Administration

"Public administration must be governed by the democratic values and principles enshrined in the Constitution, including the following principles:
(a) A high standard of professional ethics must be promoted and maintained.
(b) Efficient, economic and effective use of resources must be promoted.
(c) Public administration must be development-oriented.
(d) Services must be provided impartially, fairly, equitably and without bias."

The Registrar's conduct, Hanekom's silence, and the Judge Presidents' inaction violate every one of these principles.

13. POPIA BREACH – ARMSTRONG v CITY OF CAPE TOWN DATA LEAK

The Undisputed Fact

On 10 April 2026 at 09:32, Registrar Tsakani Soundy transmitted the stamped court documents of a third party – Peter Armstrong v City of Cape Town – to the Applicant as purported "proof" of his own filing.

Legal Position – Section 8 of POPIA

"A responsible party must, prior to processing the personal information of a data subject, ensure that the data subject is aware of: (a) the information being collected; (b) the purpose for which it is being collected; (c) whether the supply of the information is voluntary or mandatory; (d) the consequences of failure to provide the information; (e) the recipients of the information; (f) the right of access to and correction of the information; (g) the right to object to the processing of the information."

The Breach

- Unauthorised disclosure of another litigant's confidential judicial records.
- Provision of false confirmation of filing.
- Exposure of the third party's identity without consent.

⚠ POPIA VIOLATION

This was not a technical error. This was a direct violation of Section 8 of POPIA.
The Information Regulator must be notified and must investigate.

14. JUDICIAL CONDUCT – THE "AMBULANCE AT THE COURTHOUSE" PRINCIPLE

The 25 March 2026 High Court Hearing

The Applicant appeared before Judge Anderson in Case No: 2026-066952 under conditions of documented extreme psychological duress.

The Unauthorized Representative

An Advocate attended the proceedings without the Applicant's mandate and unilaterally assumed conduct of the matter. The direct consequence of this unauthorized intervention was that the matter was struck from the roll with a punitive Scale C costs order against the Applicant.

This same Advocate was thereafter removed from the Judge's chambers and placed under 72-hour involuntary psychiatric observation – an outcome the Court witnessed in real time.

The "Ambulance at the Courthouse" Principle

A court of law may not base a punitive order upon the conduct of a party's purported representative when that representative was, at the material time, in an acute state of psychiatric crisis – a crisis the Court itself witnessed and was thereby placed on legal notice of.

The Applicant's Position

The Applicant is a specialist registered nurse with 16 years of clinical governance experience. He identifies the Advocate's conduct on 25 March as consistent with acute mental decompensation. The resulting costs order was therefore granted on the basis of legally tainted conduct and is voidable on that ground alone.

Forensic Implication

The punitive costs order (Scale C) was granted based on the conduct of a representative who was in a state of psychiatric crisis – a fact the Court witnessed. The order is voidable. The audio recording is essential to establish this fact.

15. FINAL DEMANDS

Action Required	Legal Basis	Deadline
Enrol Case 2026-077546 on the Unopposed Roll for default judgment	Rule 16(1) – mandatory	Within 5 court days
Provide written confirmation of enrolment and hearing date	Rule 16(1) & administrative duty	Within 5 court days
Rectify the "ghost notification" system failure	POPIA & due process	Immediately
Provide the official audio recording of the 16 April 2026 High Court proceedings	Section 34 & due process	Within 5 court days
Provide the official audio recording of the 25 March 2026 High Court proceedings	Section 34 & due process	Within 5 court days
Acknowledge and place the Unilateral Pre-Trial Minute (Case No: 2026-083299) before a Judge	Labour Court Rules	Within 5 court days

Acknowledge that administrative failures will not prejudice this litigant	Munozohamba	Within 5 court days
Acknowledge that Registrar Soundy's upload of documents constitutes the court's acceptance of filing	Administrative law	Within 5 court days
Acknowledge the formal escalation (EH/JO/2026/003) and provide a substantive response	Judicial oversight	Within 5 court days
Provide a written explanation for the POPIA breach (Armstrong v City of Cape Town)	POPIA Section 8	Within 5 court days
Review and suspend enforcement of the Scale C punitive costs order	Biowatch principle	Within 5 court days

16. CONSEQUENCES OF NON-COMPLIANCE

Failure to comply with the above demands will trigger the following without further notice:

16.1 Information Regulator Complaint

- POPIA breach for unauthorised processing of personal data (ghost notification).
- POPIA breach for failure to ensure data integrity.
- POPIA breach for unauthorised disclosure of third-party documents (Armstrong v City of Cape Town).
- POPIA breach for failure to rectify inaccurate information.

16.2 Parliamentary Oversight Submission

The Consolidated Forensic Oversight Report is already being finalised for submission to:

- Portfolio Committee on Justice and Constitutional Development
- Portfolio Committee on Health
- Portfolio Committee on Employment and Labour
- Standing Committee on Finance
- The National Speaker of Parliament (regarding the High Court audio request and misrepresentation)

16.3 Judicial Service Commission Complaint

- For administrative malfeasance by court officials (Ismail, Soundy, Hanekom).
- For failure to uphold the principles of public administration under Section 195.
- For complicity in misrepresentation to Parliament.
- For the conduct of Judge Anderson on 25 March 2026.
- For the failure of Judge Presidents to respond to formal escalation.

16.4 Legal Practice Council Referral

- For opposing counsel's attrition tactics (Deneys Reitz Inc. – Jason Whyte & Frances Barker).
- For exploitation of a destitute self-represented litigant.
- For potential misrepresentation to Parliament.

16.5 South African Human Rights Commission Complaint

- For violation of Section 34 – Right of Access to Courts.
- For systemic obstruction of justice.
- For denial of access to evidence (audio recordings).
- For violation of Section 9 – Equality (discrimination against self-represented, destitute litigant).

17. CERTIFICATE OF SERVICE

I, Wilbur William Matthee, hereby certify that a true copy of this FINAL CLOSURE REPORT was served on 23 June 2026 via email to:

Recipient	Email Address
Ruanne David (Director of Court Operations)	RDavid@judiciary.org.za
Nicola Hanekom (Acting Chief Registrar)	NHanekom@judiciary.org.za
Farzaana Ismail (Registrar)	FIsmail@judiciary.org.za
Tsakani Soundy (Registrar)	TSoundy@judiciary.org.za
Office of the Chief Justice	ServiceDelivery@justice.gov.za
The Honourable Judge President, Labour Court	(Via Director David)
The Honourable Judge President, High Court	(Via Director David)
National Speaker of Parliament	(To Parliamentary Portfolio Committee)
Portfolio Committee on Justice (Adv. Vamaano)	vramaano@parliament.gov.za
Portfolio Committee on Justice (Mr. Mthonjeni)	mmthonjeni@parliament.gov.za
South African Human Rights Commission	info@sahrc.org.za
Information Regulator	(To be submitted separately)
Judicial Service Commission	(To be submitted separately)
Legal Practice Council	(To be submitted separately)
Jason Whyte (Deneys Reitz Inc.) – For Notice Purposes Only	Jason.whyte@deneys.co.za

18. FINAL DECLARATION

This is the final administrative interaction between the Applicant and the Office of the Chief Justice regarding these matters.

The Registrar's contradictory positions, the "ghost notification," the system failures, Hanekom's silence on the audio request, the failure to acknowledge the Unilateral Pre-Trial Minute, the POPIA breach, the judicial conduct on 25 March 2026, the Judge Presidents' silence on the formal escalation, and the procedural obstruction have been exhaustively documented and will now be ventilated before:

- The Information Regulator – for POPIA breaches.
- Parliamentary Portfolio Committees – for oversight failure and misrepresentation to the National Speaker.
- The Judicial Service Commission – for administrative malfeasance and judicial conduct.
- The South African Human Rights Commission – for constitutional violations.
- The Legal Practice Council – for opposing counsel's conduct.

⚠ FINAL DECLARATION

The record is complete. The evidence is immutable. The attrition ends here.

GOVERN YOURSELVES ACCORDINGLY.

Wilbur William Matthee

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Enclosures

- Consolidated Forensic Oversight Report (Digital Dossier)
- Parliamentary Memorandum (EH/JO/2026/001 – 10 April 2026)
- Public Statement (13 April 2026)
- Formal Escalation (EH/JO/2026/003 – 09 June 2026)
- Record of Registrar Soundy's Upload Assistance (05 May 2026)
- Record of Registrar Ismail's Contradiction (12 May vs. 10 June 2026)
- Record of "Ghost Notification" (18 June 2026)
- Director David's Admission (22 June 2026)
- Urgent Audio Request to Acting Chief Registrar Hanekom (03 June 2026)
- Unilateral Pre-Trial Minute (Case No: 2026-083299)
- Deneys Reitz Inc. Correspondence to Parliament (03 June 2026)
- POPIA Breach Record – Armstrong v City of Cape Town (10 April 2026)

END OF REPORT